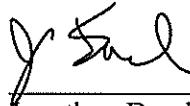


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, July 13, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23960 against Sergeant Carl Scogmanillo, Tax Registry No. 940723. The case was conferenced on April 6, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B) forfeiture of TEN (10) vacation days. The Charges and Specifications will be dismissed for plea purposes.

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche, Executive Director
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23960BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, SCOGMANILLO	FIRST CARL	M.I.	COMMAND OFF OF DEP COM OF TRAINING
SHIELD NO. 4519	TAX REGISTRY NO. 940723	SOCIAL SECURITY NO.		DATE APPOINTED 01/09/2006
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Carl Scogmanillo, on or about September 2, 2019, at approximately 1845, while assigned to 067 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he conducted a retaliatory arrest of § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brulio
FIRST DEPUTY COMMISSIONER

10/19/23
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

1/29/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 19, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23960 against Sergeant Scogmanillo, Tax #940723, with the recommendation that the Charges and Specifications against Sergeant Scogmanillo be dismissed. It is further recommended that Sergeant Scogmanillo receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Jeff Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/jpc



DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

DISAPPROVED

JAN 29 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 12, 2024

Re: CCRB Case No. 201908026 (Incident Date: September 2, 2019) involving Sergeant Carl Scogmanillo, Tax No. 940723 (DADS No. 2021-23960)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegation against Sergeant Carl Scogmanillo and determined that the actions of Sergeant Scogmanillo do not warrant the imposition of the proposed penalty.

In this matter, Sergeant Scogmanillo observed an individual playing loud music, which he stated he heard from approximately one block away. Upon approaching the individual playing the loud music, the individual turned the music off and Sergeant Scogmanillo asked the individual for his identification. The individual refused, despite Sergeant Scogmanillo asking numerous times. At one point the individual states "I turned the music off. I'm not giving you my ID." Sergeant Scogmanillo made the decision to place the individual into custody due to his refusal to provide his identification. Lieutenant Kevon Sample assigned to another precinct responded, and instructed the officers to issue a summons. Within a few minutes, Inspector Elliot Colon, the Commanding Officer of the precinct responded and decided the individual should be placed under arrest.

The Police Commissioner has determined based on the totality of the circumstances, Sergeant Scogmanillo did not conduct a retaliatory arrest. Sergeant Scogmanillo decided to place an individual

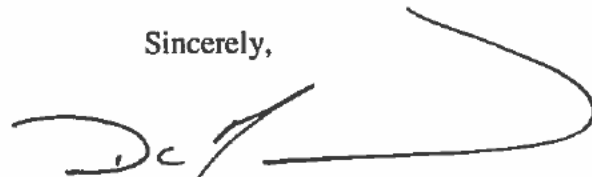
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under arrest after he was observed committing a violation and refused to provide his identification. Furthermore, Sergeant Scogmanillo followed orders from Inspector Colon who decided there was probable cause for the arrest.

Based on the totality of the circumstances, the Police Commissioner intends to dismiss the charges and specifications in this matter, and issue no disciplinary action vacation days for the alleged retaliatory arrest.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

January 25, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201908026 v. Sergeant Carl Scogmanillo, Tax No. 940723 (DADS No. 2021-23960)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated January 12, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to take no disciplinary action against Sergeant Carl Scogmanillo. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

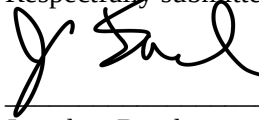
Deputy Marino stated that after reviewing the recommendation of the CCRB, you determined that no disciplinary action against Sergeant Scogmanillo is appropriate because Sergeant Scogmanillo did not conduct a retaliatory arrest. The CCRB disagrees and asks that the agreed upon Negotiated Settlement be approved.

In this case, it was undisputed that when Sgt. Scogmanillo approached the residence, § 87(2)(b) immediately turned off the music and did not ever turn it back on. Given that the noise condition was immediately corrected, Sgt. Scogmanillo should not have attempted to issue § 87(2)(b) a summons. PG 214-23 states that a summons should only be given for unreasonable noise if attempts to correct the condition fail. Here, the noise condition was immediately corrected and, thus, no summons should have been issued. Furthermore, as Sgt. Scogmanillo had no probable cause to believe that § 87(2)(b) had committed an offense, § 87(2)(b) failure to provide Sgt. Scogmanillo with his ID does not constitute Obstruction of Governmental Administration.

Lieutenant Sample intervened, obtained § 87(2)(b) ID, and decided to release him with a summons. Sgt. Scogmanillo disagreed with Lieutenant Sample and requested that Inspector Colon respond to resolve the situation. Sgt. Scogmanillo chose to escalate the situation by requesting that Inspector Colon overrule Lieutenant Sample’s decision to release § 87(2)(b)

Sgt. Scogmanillo's arrest of § 87(2)(b) was unreasonable and retaliatory, given that the music was immediately turned off, Sgt. Scogmanillo received § 87(2)(b) ID and § 87(2)(b) was given the summons. The CCRB would ask you to approve the Negotiated Settlement that was agreed upon by the CCRB and Sgt. Scogmanillo, dismiss the charges, and impose the agreed upon penalty of a Command Discipline B with the forfeiture of Ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board